

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

August 25, 2008

The Governing Body of the City of Cheyenne met in regular session on this date at 6:00 p.m. in Council Chambers. Present were: MAYOR-Jack R. Spiker; COUNCIL MEMBERS-Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Laybourn, Mr. Pierson, Dr. Rinne, Mr. Segrave and Mr. Valdez.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Claudia Angelos, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests, in which event the item will be removed from the Consent Agenda and considered in its normal sequence on the agenda.) Upon request by Mr. Laybourn, Mayor Spiker announced agenda items #20, 21, 22, 31(a), 32(b) and 33(a) would be removed from the Consent Agenda. Comment was made pertaining to removal of Consent Agenda items. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn voting "no".

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON AUGUST 11, 2008. Motion (per consent agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON AUGUST 18, 2008. Motion (per consent agenda) carried.

Mr. Segrave moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Upon inquiry, City Treasurer Barb Dorr and Capt. Jeff Schulz, Cheyenne Police Dept., reviewed information available on a voucher payable to Cornerstone Programs Corp. (\$10,000.00), juvenile detention fees for month of July. Capt. Schulz advised Cornerstone operates the facility and provides services, but Wardell Academy owns the property, and provided information on services received, police monitoring, and financial support for services involving the City, Sheriff's Dept. and State of Wyoming Dept. of Family Services. He stated there is no other local facility at the present time to house juvenile offenders. Comments followed on operational management of the facility and past problems when the facility was operated by Wardell Academy. Upon query, Ms. Dorr reviewed vouchers payable to Ft. Collins Radiator (\$100.00), radiator repair; H.W. Lochner (\$12,429.31), Crow Creek Flood Control improvement project engineering inspection (Warren Ave. bridge), and Lands End, Inc. (\$32.45), clothing purchase. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn voting "no".

Mayor Spiker opened a public hearing to receive input and discussion on the submission of an application for grant funding to the Wyoming Business Council under the Business Ready

Communities: Community Enhancements Program for funding for continued development of David R. Romero South Cheyenne Community Park. Teresa Moore, Parks and Recreation Dept., conducted a brief visual presentation involving the purpose of the grant funding request of \$500,000.00 (50/50 match) and public meetings that were held to receive input on the Park's conceptual master plan. She advised the grant request is to assist with Phase I development (i.e. sidewalks, trails, playground, plaza and enhancements to picnic shelter), and provided schedule information for completion of Phase I. There being no further comments or input and purpose of the hearing having been met, Mayor Spiker closed the hearing.

Mayor Spiker opened a public hearing for the purpose of receiving comments and input for a restaurant liquor license application filed with the City Clerk's Office for Primos Cheyenne d/b/a Scotty's Pizza Factory, 1802 Dell Range, Cheyenne, WY. There being no comments or input and purpose of the hearing having been met, Mayor Spiker closed the hearing. The application was referred to Finance Committee.

“AN ORDINANCE AMENDING TITLE 5, BUSINESS LICENSES AND REGULATIONS, CHAPTER 5.12, ALCOHOLIC BEVERAGES, SECTION 5.12.090 (B), MINORS-DISPENSING ROOM RESTRICTIONS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING, CONCERNING MINORS EMPLOYED IN A RESTAURANT AND FULL SERVICE RESTAURANT ENVIRONMENT.” Speaking in opposition to the ordinance were: Sharon Guernsey, affiliated with the State's *Enforcing Underage Drinking Laws* program; Jim Cook, parent and Vice-President of Student Services for Laramie County Community College; Kelsey James and Ryan Regaglia, Central High School students, and Alfrieda Gonzales, Executive Director, Laramie County Community Partnership. Topics discussed included: Information on “Regulating Strategies for Preventing Youth Access to Alcohol: Best Practices” pursuant to the U.S. Dept. of Justice's *Enforcing Underage Drinking Laws* Program; preventing youth access to alcohol; enforcement of underage drinking violations by law officers; belief that the proposed ordinance is not a workforce issue but one of business convenience affecting public safety and health; developmental differences between persons 18 to 21 years of age; general statistics involving youth alcohol use and alcohol related injuries, accidents and incidents; culture and alcohol environment; LCCC alcohol survey results; economic improvement in salaries paid to young adults working in service related restaurant environments as an employment incentive; educational awareness and promotion through responsible training programs; exposure to and availability of alcohol to persons under the legal drinking age; community message of intolerance for underage drinking; issues, including peer pressure, involving 18 to 21 year olds serving alcohol in restaurant dining areas as currently allowed vs. serving of food and alcohol within a dispensing room environment; recent review of alcohol regulations in place throughout Laramie County by the Laramie County Community Partnership and anticipated report to be received in October from the State Dept. of Health, Substance Abuse Division, reflecting a similar review of state statutes affiliated with underage drinking concerns; need for a coherent community policy, and request to the governing body to allow time to receive the state report. The following individuals, affiliated with City retail and bar and grill type liquor licenses, spoke in favor of the ordinance: Rachel Svoboda, Old Chicago; Jay Hutchinson, Olive Garden; Mylon Skala, Applebees, and John Johnson, Old Chicago. Topics discussed included: Workforce labor shortage issues; employee wages; inability of persons 18 to 21 years old to serve food and alcohol to patrons within a dispensing room vs. current City Code and state law allowing those employees who are at least 18 years of age (in a restaurant environment as defined by state statute) to serve

alcohol to all other dining areas of the restaurant; clarification that the definition of “serving” does not include mixing and pouring drinks (bartending); importance of being able to utilize persons ages 18-21 as a labor source; labor pool shortage issues affecting customer service levels, and licensees’ responsibilities, including employee TIPS training and enforcement of business policies, and compliance with laws. John Fafoutakis expressed his belief that the problem is not with restaurant environments or underage drinking, but with the irresponsibility generally of the alcohol industry, particularly its advertising techniques. During comments, various speakers submitted written documentation (on file with office of City Clerk) to governing body members in support of their statements. Marty Hendrickson, Restaurant and Lodging Assoc., read a letter on behalf of Lynn Birleffi, Executive Director of the Wyoming Lodging and Restaurant Assoc., expressing Ms. Birleffi’s support of the ordinance and its importance in assisting restaurant owners’ with workforce challenges and quality of customer services. George Halyak questioned the ordinance’s purpose and meaning. Upon inquiry, City Clerk Carol Intlekofer re-read the entitlement of the ordinance and explained, if the ordinance is approved, the amendment will affect employees 18 to 21 years of age when employed only in a restaurant and full service restaurant environment, as defined by state statute, during the course of their employment duties by allowing them to provide employment services within a dispensing room area in addition to other designated dining areas outside of the dispensing room. Mr. Halyak discussed the different types of employees that may be allowed within the dispensing room and suggested modifying the ordinance to be more specific. Reporting for Public Services Committee, Mr. Collins advised there was no recommendation from the Committee. Mr. Brown moved to approve on third and final reading, seconded by Ms. Case. Upon inquiry, Ms. Intlekofer reviewed language currently contained in City Code Section 5.12.090 (i.e. sub-sections A. and B.), not just the portions of sub-section B. involving the proposed amendment. Extensive discussion followed and included the following subjects: Underage drinking and workforce labor topics constituting 2 different issues; labor shortage and business concerns; current employee services within vs. outside a dispensing room; ordinance change not pertaining to those liquor licensee establishments whose primary business purpose involves bars and/or package liquor sales and not the sale of food; proposed amendment intended to apply to 18-21 year olds while performing employment services only, and past city ordinances approved by the governing body regulating alcohol issues. Mr. Collins moved to amend Section 5.12.090, sub-section B. as follows, seconded by Dr. Rinne: “EXCEPT FOR EMPLOYEES WHO, PURSUANT TO THE PERFORMANCE OF THEIR EMPLOYMENT DUTIES, AND WHO ARE AT LEAST EIGHTEEN (18) YEARS OF AGE AND EMPLOYED BY A LICENSEE IN A RESTAURANT AND FULL SERVICE RESTAURANT ENVIRONMENT, AS DEFINED BY WYO. STAT. SECTION 12-1-101 (a)(xiv), No person under the legal drinking age may enter or remain in a dispensing room where alcoholic liquors and/or malt beverages are sold or dispensed.” Motion to amend carried. Voting “yes” – all members of the governing body. Discussion continued on employer supervision and responsibilities; police inspections; description of a dispensing room; passing additional laws to help with enforcement of underage drinking; information on recommended age of servers vs. minors in possession (unless incidental to employment) contained in the “Best Practices” information previously submitted during discussion; other Wyoming municipalities’ laws and State Sheriff’s and Chiefs of Police association’s position on the issue; employee wages; industry and labor market conditions; amendment affecting employees working as hosts, hostesses, servers and table busers, and youth responsibility. Upon inquiry, Police Capt. Jeff Schulz advised there have not been any serious law enforcement problems with alcohol service in restaurant environments regarding service to minors. Mr. Pierson moved to amend Section 5.12.090, sub-section B. to change the age from 18 to at least 19 years of age, seconded by Ms.

Broyles. It was advised raising the age to 19 would eliminate the majority of high school aged persons from being able to serve alcohol or enter the dispensing room. Upon inquiry on why the state's legal drinking age had been raised in the past from 19 to 21 years old, Captain Schulz clarified it was based upon the State not losing highway funding. Motion to amend failed. Voting "yes" – Ms. Broyles, Mr. Pierson, Dr. Rinne, and Mayor Spiker. Voting "no" – Mr. Brown, Ms. Case, Mr. Collins, Mr. Laybourn, Mr. Segrave and Mr. Valdez. Mr. Pierson moved to amend Section 5.12.090 to add a new subsection C. that would read: "ALL SERVERS UNDER THE AGE OF 21 MUST CEASE SERVICE IN THE DISPENSING AREA AFTER 9:00 P.M.", seconded by Ms. Broyles. Mr. Hutchinson spoke in opposition to the 9:00 p.m. deadline and explained the restaurant he's affiliated with (i.e. Olive Garden) closes at 10:00 p.m. and the effect the amendment would have on management of staffing levels and customer service. Upon inquiry, Capt. Schulz provided information on the City's curfew hours for minors. Motion to amend failed. Voting "yes" – Mr. Pierson and Mayor Spiker. Voting "no" – Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Laybourn, Dr. Rinne, Mr. Segrave and Mr. Valdez. Further discussion included workforce issues, minimum wage and salary levels for wait staff, living wages within the community, 18 year olds serving in the military and being able to vote, exposure to alcohol and underage drinking concerns, and deferring action on the ordinance to allow time for the report from the state to be completed to provide possible guidance on the issue. Ms. Broyles moved to postpone to October 27, 2008, seconded by Mr. Valdez. Motion to postpone carried. Voting "yes" – Ms. Broyles, Ms. Case, Mr. Laybourn, Mr. Pierson, Mr. Valdez and Mayor Spiker. Voting "no" – Mr. Brown, Mr. Collins, Dr. Rinne and Mr. Segrave.

Following a 10 minute recess, Mayor Spiker reconvened the meeting at 8:36 pm.

"AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, PUBLIC ROAD AND ALLEY RIGHT OF WAY SITUATED IN THE NW¼ OF SECTION 27, T.14N., R.66W. LARAMIE COUNTY, WYOMING (LOCATED NORTH OF PERSHING BOULEVARD, SOUTH OF DELL RANGE BOULEVARD AND EAST OF GROVE DRIVE AND WEST OF COLLEGE DRIVE)." Mr. Collins moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting "yes" – all members of the governing body.

"AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A PARCEL OF LAND DESCRIBED AS LOT 16, BLOCK 1, DOWNEY ADDITION, LARAMIE COUNTY, WYOMING (AKA 3324 LAND COURT)." Mr. Collins moved to approve on second reading, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body.

"AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, PARCELS OF LAND DESCRIBED AS THE NORTHERLY PORTION OF LOT 1, BLOCK 1 INCLUSIVE OF THE 16 FOOT UTILITY EASEMENT, ROGERS SUBDIVISION AND LOTS 3 THROUGH 5 AND THE NORTHERLY HALF OF ADJACENT VACATED ALLEY, BLOCK 2, COULSON ADDITION, LARAMIE COUNTY, WYOMING (LOCATED SOUTH OF AND ADJACENT TO MESSENGER COURT, WEST OF MCCANN AVENUE)." Mr. Collins moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting "yes" – all members of the governing body.

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, PARCELS OF LAND DESCRIBED AS THE WEST 60-FEET OF THE EAST 120-FEET OF TRACT 336, SUNNYSIDE ADDITION, SEVENTH FILING, LARAMIE COUNTY, WYOMING (AKA 3616 AND 3618 RAWLINS STREET).” Mr. Collins moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body.

“AN ORDINANCE VACATING MCCOMB AVENUE BETWEEN W. LINCOLNWAY AND W. 17TH STREET AND THE 16-FOOT ALLEY WITHIN BLOCK 401, ORIGINAL CITY, CHEYENNE, WYOMING (LOCATED BETWEEN MISSILE DRIVE AND MCCOMB AVENUE AND BETWEEN W. LINCOLNWAY AND W. 17TH STREET).” Mr. Collins moved to approve on second reading with Planning Commission condition #1, seconded by Mr. Brown. Upon inquiry, Martin Matsen, Development Director, provided information on the location of the property relative to the Microtel motel project, and Jim Hancock, Wyoming Grand, provided property ownership information. Motion carried. Voting “yes” – all members of the governing body.

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM LIGHT INDUSTRIAL AND MUB MIXED USE WITH BUSINESS EMPHASIS DISTRICTS TO P PUBLIC DISTRICT FOR A REPLAT OF BLOCK 1, LOT 1, KIWANIS ADDITION; A PORTION OF 11TH STREET, ORIGINAL CITY; THE HOLMQUIST ADDITION BEING A PORTION OF BLOCKS 512 AND 513, ORIGINAL CITY INCLUDING A PORTION OF VACATED 10TH STREET AND AMES AVENUE; A PORTION OF BLOCKS 2, 3, 4, 8 AND 9, AND ALL OF BLOCKS 5, 6 AND 7, INTERIOR HEIGHTS SUBDIVISION, THOSE PARCELS DESCRIBED IN WARRANTY DEEDS BOOK 1841 AT PAGE 889 AND BOOK 1841 AT PAGE 938, AND A PORTION OF THE S½ OF SECTION 6, T.14N., R.66W., 6TH P.M., CHEYENNE, WYOMING TO BE KNOWN AS DAVID R. ROMERO SOUTH CHEYENNE COMMUNITY PARK (LOCATED SOUTH AND EAST OF AND ADJACENT TO PARSLEY BOULEVARD, WEST OF DILLON AVENUE).” Mr. Collins moved to approve on second reading, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body.

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM HR-2 HIGH-DENSITY RESIDENTIAL-DEVELOPING DISTRICT AND MR-1 MEDIUM-DENSITY RESIDENTIAL-ESTABLISHED DISTRICT TO CB COMMUNITY BUSINESS DISTRICT FOR A PORTION OF SOUTH PARK ESTATES, 2ND FILING AND INTERIOR HEIGHTS, STANFIELD 3RD ADDITION AND PORTIONS OF BLOCKS 713-714, 754-756 AND 775-777, ORIGINAL CITY, CHEYENNE, WYOMING (LOCATED NORTH OF I-80, BETWEEN WALTERSCHEID BOULEVARD AND PARTOYAN DRIVE AND SOUTH OF W. 5TH STREET).” Mr. Collins moved to approve on second reading with Planning Commission condition #1, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM MR-

1 MEDIUM-DENSITY RESIDENTIAL-ESTABLISHED DISTRICT TO MUB MIXED USE WITH BUSINESS EMPHASIS DISTRICT FOR THE NORTH 106-FEET OF LOT 8, AND ALL OF LOTS 9 AND 10, BLOCK 8, A CORRECTED REPLAT OF LOGAN HEIGHTS, CHEYENNE, WYOMING (LOCATED EAST OF LOGAN AVENUE BETWEEN E. 19TH STREET AND CHEYENNE PLACE).” Mr. Collins moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body.

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM LR-1 LOW-DENSITY RESIDENTIAL-ESTABLISHED DISTRICT TO MUR MIXED USE WITH RESIDENTIAL EMPHASIS DISTRICT FOR THE EAST 65-FEET OF LOT 14, BLOCK 3, YELLOWSTONE ADDITION, CHEYENNE, WYOMING (LOCATED NORTH OF AND ADJACENT TO DELL RANGE BOULEVARD, EAST OF YELLOWSTONE ROAD).” Ron Pinther, agent for the applicant, spoke in favor of the ordinance and advised the reason for the zone change request is due to proposed purchase of the property for light business use; discussed similar zoning uses in the area for insurance and real estate offices, and cited sections from the Plan Cheyenne document relative to converting residential homes to small business uses in the respective area. He reviewed discussion and procedures at the Planning Commission’s meeting on the item, including his concerns with procedures involving presentation of information, and the Commission’s recommendation to deny the zone request; submitted printed information in support of his statements (documents on file with office of City Clerk), and stated he had contacted property owners on either side of the property and both support the zone change request. Mr. Pinther clarified the houses adjacent to the property are currently residences, not businesses. The following residents in the area spoke in opposition to the zone change: Rosalind Schliske, Cindy Paul, Karleen Dagit, Eugene Knipping and Darlene McClure. Topics discussed included: History of Yellowstone Addition as initially developed; maintaining the integrity and residential character of the established neighborhood; previous re-zoning attempts; spot zoning; aesthetic green space provided by the Airport’s property containing the elk sculpture; re-zoning effect on the neighborhood; buffering and transitioning of residential areas to retail use; future planning for use of the area; alley access concerns and increased traffic; compromised neighborhood due to other businesses developed in the neighborhood; Oxford House rehabilitation program in the neighborhood that has resulted in additional traffic and safety concerns, and alley drainage conditions. Mr. Pinther spoke in support of comments made suggesting the City conduct long range planning to determine future allowable uses in the area, commented on declining property values, and responded to comments involving his potential interest in acquiring the Oxford House property. Upon inquiry pertaining to Mr. Pinther’s request at Public Services Committee to consider referring the item back to the Planning Commission for further consideration and whether the governing body had a past precedent involving referral of agenda items back to the Commission, City Attorney Claudia Angelos stated she believed the governing body could send the item back to the Commission if desired, or the body could either approve or deny the zoning request. Upon request, City Clerk Carol Intlekofer read a letter (on file with office of City Clerk) that was issued to Mr. Pinther from the Development office relative to the process involved in having the item reconsidered or reviewed further by the Planning Commission. Martin Matsen, Development Director, noted the difference between having an item reconsidered by the Planning Commission vs. a request for further review or evaluation on an item by the Commission, and provided information on Commission policies relative to reconsideration vs. additional review or evaluation. He stated if the ordinance was “voted down” by the governing body, the applicant would have the ability to ask the Planning Commission to reconsider the item at its next meeting if a Commission member who

voted on the prevailing side brings it up for discussion. During comments on the PlanCheyenne document, Mr. Matsen advised he did not see a conflict with the Plan and the area being discussed as it is a broader area that includes secondary uses and it was not the intent of the Plan to change existing neighborhoods. Brandon Cammarata, Planning Dept., addressed the perceived conflict regarding PlanCheyenne and stated residential conversions along arterial streets is to ensure neighborhoods will be protected to be livable and to address access issues on a very busy road while encouraging investment in properties that sometimes don't see investment due to a particular use. Mr. Collins advised there was no recommendation on the item from Public Services Committee. Mr. Segrave moved to approve on second reading, seconded by Mr. Pierson. Upon inquiry regarding other properties in the respective area that are now being utilized as businesses, Mr. Matsen clarified there are two additional properties conducting businesses out of residential structures that were rezoned to MUR (Mixed Use with Residential Emphasis), and indicated other zone changes along the corridor have been requested in the past that have not been approved. He advised if the ordinance moved forward, the driveway along Dell Range should be closed with the alley providing access to the property. Discussion followed on a past zone change request, concerns with property ingress and egress, long range planning involving the neighborhood, and a conceptual plan for the area to address future changes. Motion failed. Voting "yes" – Mr. Laybourn. Voting "no" – Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Segrave, Mr. Valdez and Mayor Spiker.

Following a ten minute recess, Mayor Spiker reconvened the meeting at 10:16 pm.

"AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, PARCELS OF LAND DESCRIBED AS THE W ½ OF TRACT 10, AIRPORT VALLEY TRACTS, LARAMIE COUNTY, WY (AKA 5905 CROW ROAD)" -- referred to Public Services Committee (sponsor - Mr. Collins).

"A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT OF WINDMILL ROAD, FIRST FILING, BEING A PORTION OF SECTION 28, T.14N., R.66W., 6TH P.M., CHEYENNE, WYOMING (WINDMILL ROAD LOCATED BETWEEN DELL RANGE AND E. PERSHING BOULEVARDS AND THE SOUTH HALF OF DELL RANGE BOULEVARD BETWEEN GRANDVIEW AND HILLTOP AVENUES." Mr. Collins moved to adopt, seconded by Ms. Broyles. Motion carried. Voting "yes" – all members of the governing body. (#5064)

"A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT OF COLLEGE BUSINESS PARK REFINEMENT E, A REPLAT OF LOTS 7 THRU 12, BLOCK ONE, COLLEGE BUSINESS PARK, CHEYENNE, WYOMING (LOCATED AT THE NORTHWEST CORNER OF THE INTERSECTION OF LARAMIE ST. AND MONROE AVE.)." Mr. Collins moved to adopt, seconded by Ms. Broyles. Motion carried. Voting "yes" – all members of the governing body. (#5065)

"A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT OF SOUTH PARK ESTATES, 3RD FILING, A REPLAT OF LOTS 58 AND 59, BLOCK ONE, SOUTH PARK ESTATES, SECOND FILING, CHEYENNE, WYOMING

(LOCATED AT THE SOUTHWEST CORNER OF THE INTERSECTION OF PARTOYAN DRIVE AND SECOND STREET).” Kevin Keller, owner of South Park Land Development, advised the area was designed originally as a medium high-density project and an easement by the utility company is impacting two of the lots, causing problems in the design of building two 4-plexes (multi-family housing). He stated the plat will eliminate the property line between the two original lots, creating one lot to enable the building of one 6-plex. Mr. Collins moved to adopt, seconded by Mr. Pierson. Motion carried. Voting “yes” – all members of the governing body. (#5066)

“A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT OF SOUTH PARK ESTATES, 5TH FILING, A REPLAT OF LOT 45 AND A PORTION OF LOT 44, BLOCK ONE, SOUTH PARK ESTATES, SECOND FILING, CHEYENNE, WYOMING (LOCATED SOUTH OF AND ADJACENT TO W. SECOND STREET, WITHIN THE CUL-DE-SAC.” Kevin Keller, owner of South Park Land Development, clarified that two lots adjacent to each other were originally planned for twin homes and the plat would eliminate the property line between the lots to assist with his proposed building of a single 4-plex unit. Mr. Collins moved to adopt, seconded by Mr. Segrave. Discussion followed regarding density in the area, property covenants and Mr. Keller’s projects providing affordable housing for the community. Motion carried. Voting “yes” – all members of the governing body. (#5067)

“A RESOLUTION APPROVING THE SUBMITTAL OF A REQUEST TO THE WYOMING STATE LOAN AND INVESTMENT BOARD TO AMEND CWSRF LOAN #081 IN THE AMOUNT OF \$400,000 FOR EXTENSIONS TO CHEYENNE’S RECYCLE WATER SYSTEM AND AUTHORIZING THE MAYOR, CITY CLERK AND BOARD DIRECTOR TO SIGN ALL RELATED DOCUMENTS REQUIRED.” Mayor Spiker announced the item was being withdrawn from the agenda. Upon inquiry under other City business, it was advised the item was withdrawn at the request of staff as the Board of Public Utilities has identified another funding source for the project.

“A RESOLUTION AUTHORIZING THE SUBMISSION OF A BUSINESS READY COMMUNITIES GRANT APPLICATION TO THE WYOMING BUSINESS COUNCIL ON BEHALF OF THE GOVERNING BODY OF THE CITY OF CHEYENNE FOR THE CONTINUED DEVELOPMENT OF THE DAVID R. ROMERO SOUTH CHEYENNE COMMUNITY PARK.” Reporting for Finance Committee, Mr. Segrave moved to adopt, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body. (#5068)

[CA] “A RESOLUTION ADOPTING THE BELVOIR RANCH MASTER PLAN” -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] “A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYOMING STATUTE §15-1-402 EXIST FOR PROPERTIES SITUATED IN A PORTION OF SECTION 1, 12, AND 17, T.13N., R.67W., 6TH P.M., LARAMIE COUNTY, WY (LOCATED SOUTH OF I-80 AND PREDOMINANTLY EAST OF SOUTHWEST DRIVE)” -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] “A RESOLUTION AMENDING RESOLUTION NO. 5038 BY AUTHORIZING THE EXPENDITURE OF UP TO \$166,000.00 FROM THE 1% SPECIFIC PURPOSE SALES & USE TAX FUND TO FACILITATE ACQUISITION OF 3.5 ACRES OF PROPERTY AND ALL IMPROVEMENTS AND APPURTENANCES THEREON, LOCATED AT THE SOUTHWEST CORNER OF SNYDER AVENUE AND W. 10TH STREET, AND OWNED BY MRS. ELIZABETH BYRD, FOR THE DEVELOPMENT OF THE DAVID R. ROMERO SOUTH CHEYENNE COMMUNITY PARK” -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] “A RESOLUTION IN SUPPORT OF THE ALLOCATION OF FISCAL YEAR 2007-2008 WARD I CONTINGENCY FUNDS TO THE DAVID R. ROMERO SOUTH CHEYENNE COMMUNITY PARK, PARKS & RECREATION DEPARTMENT, OFFICE OF YOUTH ALTERNATIVES, BOTANIC GARDENS, TRANSIT DEPARTMENT, COMEA SHELTER, AND TOWARDS A PARLIAMENTARIAN” -- referred to Finance Committee (sponsors - Ms. Case, Mr. Laybourn, Mr. Valdez).

PRELIMINARY PLATS/PRELIMINARY ZONE CHANGES:

City Preliminary Plat for Sundance Ridge II, a replat of Tracts 2 and 3, Skyline Tracts, Cheyenne, Wyoming (located between Storey Boulevard and Skyline Drive, on both sides of Sycamore Road). Ed Clark, resident in the vicinity, recited the many changes in the neighborhood that have occurred along Storey Blvd. in recent years and spoke in favor of the proposed development with the following reservations and concerns: Requests the developer provide property covenants and agreements to eliminate overhead utilities to protect the view, and require off-street parking only due to safety issues. April Brimmer Kunz, resident in the vicinity, reviewed the residential ownership and non-commercial nature of the area on the north side of Storey Blvd. relative to developer plans to build 10 town homes beneath the ridge on Skyline Drive. She indicated she was not opposed to the town homes, but expressed concerns with potential commercial business growth that may be allowed on the north side of Storey Blvd. and unknown use of future vacant lots, including the large county pocket area. She urged review of the whole neighborhood relative to future property uses and zoning laws be conducted, and that water and sewer accesses and connection costs to potential future property owners annexing into the City be determined and information provided. She advised that she had heard it would cost \$75,000 to access the sewer line on Powderhouse Road (installed during The Pointe subdivision project); noted information she had received from the Board of Public Utilities reflected the cost to tap into the sewer line would be \$12,000, and stated all the issues raised should be reviewed before the properties are platted, particularly to determine a reasonable price for water and sewer services to those property owners who may wish to annex in the future. Mr. Collins moved to acknowledge receipt with staff recommendations #1, 2 and 3, seconded by Ms. Broyles. Upon inquiry, information was provided on the staff recommendations. Motion carried. Voting “yes” – all members of the governing body.

City Preliminary Plat for Gateway South, a replat of a portion of Tract 1, Allison Tracts and in the NW1/4 of Section 8, T.13N., R.66W., 6th P.M., Cheyenne, Wyoming (located at the southeast corner of the intersection of Walterscheid Boulevard and W. Fox Farm Road). John Fafoutakis expressed concerns with antelope in the area and questioned whether the herd could safely be

relocated. Mayor Spiker advised the issue was more a Game and Fish matter than one the City Council could address. Mr. Collins moved to acknowledge receipt with staff recommendations #1 through 4, seconded by Ms. Broyles. Upon inquiry, it was advised that pursuant to input at the Public Services Committee meeting, the South Cheyenne Water and Sewer District will provide water and sewer services to the area as it is part of the District's original boundaries. Comment was made on determination by the District relative to when it will or will not provide services to certain properties. It was also noted that staff recommendation #5 had been resolved. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Segrave voting "no".

City Preliminary Plat for BOPU Subdivision, a replat of portions of Blocks 98, 99, 149, 150, 151 and vacated streets and alleyway, Original City, Cheyenne, Wyoming (located at the northwest corner of the intersection of Snyder and W. 24th Street). Brad Emmons, AVI, agent for applicant, recommended the office design principles for new development as outlined in PlanCheyenne as the best plan to follow for the project (handout provided and on file in office of City Clerk). Mr. Collins advised there was no recommendation from Public Services Committee. Mr. Collins moved to acknowledge receipt with staff recommendations #1 through 6 and Planning Commission condition #8, seconded by Ms. Broyles. Motion carried. Voting "yes" – all members of the governing body.

City Preliminary Plat for Deming Drive and Walterscheid Boulevard, being portions of Sections 5 and 6, T.13N., R.66W., 6th P.M., Cheyenne, Wyoming (located south of the Ames underpass and north of west Fox Farm Road). Mr. Collins moved to acknowledge receipt with staff recommendations #1, 2 and 3, seconded by Ms. Broyles. Motion carried. Voting "yes" – all members of the governing body.

LEASES/CONTRACTS/LEGAL:

Development Agreement between the City of Cheyenne and the Church of St. Mary for the cooperative construction of street improvements at the intersection of 22nd Street and O'Neil Avenue in conjunction with the site development work at 2200 O'Neil Avenue (2003-2006 1% Sales Tax). Tony Lucero, questioned use of 1% Sales Tax funds for the project. Ken Lewis, City Engineer, responded to the inquiry by reviewing 1% projects and providing information on maintenance work required in the area due to the road's high crown, which poses vehicular problems and which will eventually require an overlay. He indicated the agreement is fiscally cost efficient by partnering with St. Mary's to achieve the work the City needs to do during the time frame that St. Mary's is installing its required infrastructure in the street in conjunction with its new school. Mr. Lucero questioned whether lowering the crown will divert water and affect flooding conditions with Mr. Lewis explaining that lowering the crown will assist with lessening water capacity in the gutters and will not significantly alter the water flow around the school. Randy Byers, architect for St. Mary's School project, provided further information on the street crown, which is currently a challenge to individuals with disabilities, and stated the Church's support of partnering with the City on the project. George Halyak expressed concerns with the proposed construction and discussed the following issues he felt should be resolved in association with the project: Street drainage; increased traffic at the school's drop-off/pick-up area, traffic flow/volume generally and turning area; possible alley closure; whether a bump-out design is needed, and the Church's future school project would request vacation of 22nd

St. in the future. Mr. Byers reviewed construction improvements proposed, including the bump-out design (pedestrian safety), and stated access plans to and from the school have not changed, and the alley will not be closed or impeded. Mr. Segrave moved to approve in an amount not to exceed \$86,946.50, seconded by Mr. Collins. Upon inquiry regarding whether a traffic flow study had been conducted, Mr. Byers advised a traffic study had been completed and approved as part of the site plan review process and provided further information on the street improvements and reviewing agencies providing comments during the site plan review as well as other agencies and businesses being contacted during the project. Upon inquiry, Capt. Jeff Schulz advised the police department did not have any issues with the site plan. In response to inquiry regarding use of 1% funds for the project, Vicki Nemecek, Assistant Public Works Director, clarified the City's funding for the project will be from the 1% street renovation line item and will not take funding away from other projects. Discussion followed on the opportunity to partner with St. Mary's for reduced costs to the City, use of funds from the 1% street renovation line item, repair of the street crown and effect of reducing street water volume, street crowning conditions on other streets, concern with bump-outs, site plan design for the school, and portion of the project involving the City's financial investment and maintenance. Mr. Lewis clarified approval of the site plan is an administrative action, and the drawing before City Council is part of the site plan. Further discussion followed on the site plan in conjunction with the roadway, and any future changes to the plans, including whether there will be a street vacation request by the Church in the future. Mr. Byers advised he could not speak on behalf of St. Mary's concerning any future property acquisition and development plans, nor was it germane to the agenda topic; stated the project will improve handicap and pedestrian access and reviewed the physical street areas St. Mary's would be paying for vs. the City. Mr. Lewis clarified if a street vacation should be requested in the future, the City's financial investment in the project would not be lost. Upon inquiry regarding the school's playground area, Mr. Byers advised a playground will be located on the north side for the younger children and a playground on the block to the south will also be developed. Motion carried. Voting "yes" - all members of the governing body with the exception of Ms. Case and Mr. Laybourn voting "no". (#5294)

[CA] Agreement between the City of Cheyenne and the Wyoming Department of Transportation for the Safe Routes to School (SRTS) Program FY 2008 - Cheyenne Safe Routes to School Planning Award. Motion (per consent agenda) carried. (#5295)

[CA] Professional Services Contract between the City of Cheyenne, Office of Youth Alternatives, and the State of Wyoming, Department of Family Services, for intensive support mentoring for youth in the Municipal Court System -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Police Department, Victim Witness Program, and the State of Wyoming, Division of Victim Services, for services to victims of crime -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Laramie County, and Cheyenne Regional Medical Center for the purpose of creating an Emergency Medical Service Delivery System Joint Powers Board -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

Contract Modification No. 1 to Contract No. 5065 between the City of Cheyenne and Ameri-Tech HVAC Services, Inc. to add the Taco John's Events Center to the Maintenance of Mechanical Equipment & HVAC Systems Contract. Mayor Spiker announced the item was being withdrawn from the agenda at the request of city staff. Upon inquiry, Vicki Nemecek, Assistant Public Works Director, clarified the item was being withdrawn as the main contract with Ameri-Tech HVAC Services is not due to expire and it was decided to wait to include the Events Center at the time the contract is up for renewal and any maintenance work to be provided would be on a time and materials basis until added to the maintenance contract.

Contract Modification #1 to Contract #5204 between the City of Cheyenne and J-2 Contracting Co. for Contractual Services - Law and Liberty Plaza. Mr. Segrave moved to approve in an amount not to exceed \$1,700.00, seconded by Mr. Valdez. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn voting "no". (#5204)

[CA] Contract Modification No. 1 to Contract No. 5280 (Norris Viaduct) to include bid alternates #1, 2, 3, and 5 -- referred to Finance Committee.

CONSIDERATION OF BIDS:

Consideration of Bid #M-3-09 for a contract between Naranjo Civil Constructors, Inc., and the City of Cheyenne for the Cheyenne Greenway - Safe Routes to School Program, South Park & Johnson-Goins Corridors. Mr. Segrave moved to accept the bid of Naranjo Civil Constructors, Inc., Greeley, CO, in an amount not to exceed \$376,836.00, seconded by Mr. Valdez. Upon inquiry concerning \$30,000 to be placed in a miscellaneous force account, Jeff Wiggins, Parks and Recreation Dept., advised generally an engineer's estimate is taken into account when determining the percentage amount to be placed in a force account. Motion carried. Voting "yes" - all members of the governing body with the exception of Ms. Case and Dr. Rinne voting "no". (#5296)

ANNOUNCEMENTS/REPORTS/MOTIONS:

[CA] City of Cheyenne Community Facility Fees Report for Fiscal Year 2008 -- referred to Finance Committee.

[CA] Request to extend the time period for one additional year in which retail liquor licensee HEJE, Inc., d/b/a Outlaw Saloon, 3839 East Lincolnway, Cheyenne, WY, is required to become operational or open for business pursuant to Wyo. Stat. §12-4-103(a)(iv) -- referred to Finance Committee.

Announcement was made that due to the Labor Day holiday on Monday, September 1, 2008, the following meetings have been rescheduled for Tuesday, September 2, 2008: Finance Committee at 11:00 a.m., Room 122; regular Vouchers meeting of the Governing Body at Noon, City Council

Chambers, and Public Services Committee at 12:15 p.m., Room 122, Municipal Building, 2101 O'Neil Ave., Cheyenne, WY.

Announcement was made of a Public Hearing to be held September 8, 2008 at 6:00 p.m. in City Council Chambers for a transfer of ownership for a retail liquor license application filed with the City Clerk's Office for ENI, Inc. d/b/a Eagle's Nest, 1101 W. Lincolnway, Cheyenne, WY (License currently held by Eagle's Nest, Inc. d/b/a Eagle's Nest, 1101 W. Lincolnway, Cheyenne, WY).

Announcement was made of the appointment of Nicole Lindner to the Mayor's Council for People with Disabilities, to be confirmed September 8, 2008.

OTHER CITY BUSINESS:

John Fafoutakis discussed vandalism that had occurred recently at Botanic Gardens, and commended Police Officer John Gay for his efforts in educating youth of Internet dangers involving predators.

Wyoming House Representative Mary Throne, District 11, which is part of Ward I and Ward III, advised a group of interested residents has been working diligently to save several historic residential structures located near the historic Governors' mansion and expressed concerns that plans by the property owner to remove the structures from the area will have irreparable harm on the Governors' mansion as an historic site. She reviewed the recent denial of a City demolition permit through the Historic Preservation Board's process and subsequent appeal to the Building Code Board of Appeals, which upheld the denial; stated the Governors' mansion neighborhood is a specially protected historic area and stated her concerns with issuance of a City moving permit to relocate a structure and urged the governing body to "slow down" the process to allow time for the group to come up with options or solutions. Speaking in support of the City intervening in the moving process were: Jan Nelson Schroll, who read a letter received from former U.S. Senator Alan Simpson, requesting properties in the area be saved to preserve the history of Cheyenne; Nancy Abraham, who requested dedicated historic districts receive respect and urged the City Council to use its power to stop the moving of structures to maintain the integrity of the neighborhood, and Mary Ann Taliaferro, who reviewed the area's history and prominent individuals that had resided in the homes. Speakers requested the governing body intervene in the pending moving of a building within the historic area to provide time to research options or alternatives; further requested that the governing body revisit its regulations concerning moving permits relative to historic districts, and also discussed the historic Governors' Mansion neighborhood relative to possible sale of property in the area to the hospital that purportedly may utilize the land for a parking lot. Comments followed on the intention of the City's ordinance designating the Governors' Mansion as an historic area; property owners' rights; potential hospital involvement; significance of area; interpretation of City Code permit requirements, and Mayor and City Council authority to halt moving of a structure following issuance of a moving permit through the Building Department. Mayor Spiker provided information available on moving permit application procedures and status of the application that had been filed. He explained the process a moving permit applicant has to follow and compliance areas that have to be met. Discussion included whether the Mayor or City has legal authority to stop or intervene, either directly or through order

to the Police Chief, the moving process; moving permit application reviews and approvals required; seeking a written legal review to determine Mayoral and City Council authority and options; process utilized to review and approve demolition permits for designated historic areas vs. moving permits; protection of the historic Governors' Mansion area, and demolishing buildings vs. moving buildings and effect of each on the historic integrity of the district. City Attorney Claudia Angelos, stated her concerns with mayoral and governing body authority to act upon the issue, and commented on state statute and City Code provisions, which she indicated does not allow for the Mayor to stop the issuance of the moving permit once application requirements have been met and approved by necessary departments and the permit is issued. Upon inquiry on whether there is a time frame involved in issuing of moving permits, Ken Lewis, City Engineer, advised he was not aware of any for moving permits. Ms. Throne referenced a section of City Code Chapter 15.50, Historic Design Guideline (specific to the Governors' Mansion protective area), regarding relevancy of a certificate of appropriateness requirement for the property owner. In conjunction with a question posed on whether the City could file an injunction (with the court), Ms. Angelos advised if discussion continued into issues that may involve potential litigation then the governing body needs to move into executive session. Following brief comments, Mr. Pierson moved to meet in executive session to discuss a matter of potential litigation, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn voting "no". Mayor Spiker announced the motion carried and members would meet in executive session, not open to the public, in Council Chambers following a 10 minute recess; that there may or not be any action taken by the governing body as a result of the executive session, therefore, the meeting would reconvene and be open to the public following closure of the executive session. He requested the City Attorney, City Clerk, City Engineer and Deputy City Attorney be present at the executive session. (Clerk's Note: Executive session began at 12:45 a.m.) Following conclusion of the executive session, Mayor Spiker reconvened the meeting, open to the public at 1:10 a.m. Mayor Spiker advised no action would be taken by the governing body as a result of the executive session, but a special meeting of the governing body would be scheduled for Wed., August 27, 2008 at 12:00 p.m. (Noon) in City Council Chambers to further review the concerns raised regarding removal of homes in the Governor's historic district.

The meeting was officially adjourned at 1:13 a.m.

Submitted by,

Carol A. Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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